
If the FCC Chairman Is the Story of the Week, Something Has Gone Really Wrong

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[Sign up for the Surge](#), the newsletter that covers most important political nonsense of the week, delivered to your inbox every Saturday.

Welcome to this week's edition of the Surge, Slate's politics newsletter that may be locked up this time next week for our "hate speech" (our jokes that don't land). Fair.

It was another terrible week of news in a tense country at its breaking point, but at least we're about to get some decent weather. That means that furloughed federal workers will be able to take some nice walks during next month's government shutdown. Kash Patel attempted to save his job by yelling at Democrats. Donald Trump is looking to give TikTok to some of his friends.

Before we start: Let's say goodbye to sometimes Surge author Ben Mathis-Lilley, who just left Slate after 11 years to (we believe) purchase a soybean farm and get rich selling his crop to the Chinese market. [We didn't have the heart to tell him](#). You may read his [wonderful last essay](#) here—it's about politics!

Politics, politics, politics ...

1.

Brendan Carr

Sheesh, sorry you didn't get invited to any Emmy after-parties.

During his monologue Monday, ABC late-night host Jimmy Kimmel built up a joke like so: "We hit some new lows over the weekend, with the MAGA gang desperately trying to characterize this kid who murdered Charlie Kirk as anything other than one of them." It was certainly going out on a limb to characterize the shooter as "MAGA" without any information supporting that, and new information we've seen since Monday [makes the premise](#) look flat wrong.

The regime's response to Kimmel's whiffed joke windup, instead of allowing viewer anger to work its way through private action, has been to take a big ol' whack at the First Amendment. The Federal Communications Commission chairman, Brendan Carr, who [collects tribute on behalf of Donald Trump](#) from telecom companies with business before the federal government, made a fairly straightforward threat to Disney, ABC's parent company, in an interview Wednesday afternoon. "Frankly, when you see stuff like this—I mean, we can do this the easy way or the hard way," [Carr said](#). "These companies can find ways to change conduct and take action, frankly, on Kimmel, or there's going to be additional work for the FCC ahead." Hours later, affiliate behemoth Nexstar—which [has a proposed merger](#) with another affiliate behemoth before the FCC!—had said it wouldn't carry Kimmel for the "foreseeable future," and ABC, at Disney's behest, announced that it would [suspend Kimmel's show](#) "indefinitely." Sinclair, another affiliate group with a conservative ethos, outdid them all by saying Kimmel's suspension was "[not enough](#)," that it would air a remembrance of Kirk on Friday, and that Kimmel should make a donation to Turning Point USA. So: This smells an awful lot like the government using coercive power to punish speech it doesn't like, no? [Carr celebrated](#) with a GIF from *The Office*.

2.

Chuck Schumer

Going for it.

Six months after folding to Republicans at the previous government funding deadline, Senate Democrats have a plan. They've refusing to go along with the GOP's stopgap bill, a seven-week extension of funding without many extraneous items attached that would give negotiators more time to work out a long-term bipartisan funding deal. Instead, Democrats have rallied around their own proposal, which would fund the government through Oct. 31, permanently extend expiring Obamacare subsidies, reverse the Medicaid cuts from Republicans' One Big Beautiful Bill Act, and establish certain guardrails to ensure that the executive branch spends congressionally appropriated funds—essentially, a messaging bill that Republicans would never go along with. Any funding bill would need 60 votes to break a filibuster. [Both were rejected](#) in the Senate on Friday.

Minds can change in the last hours before the Sept. 30 funding deadline. But right now, Democrats are digging in on something that has never succeeded: shutting down the government and coming out the better for it. The Republican proposal to punt for a couple of months and leave the bigger

questions for a long-term deal is standard stuff. Democrats don't really object to what it does include, just what it doesn't. That's typically the recipe for taking the blame. Chuck Schumer believes, though, that Trump and Republicans would suffer the consequences regardless. Here's how he [explained it to Punchbowl News](#) this week: "Just go to people on the street and say, when Trump says, '[Don't talk with Democrats](#),' is he to blame for the shutdown? They say, 'Yes, of course.'" An exciting political experiment awaits.

3.

Kash Patel

Did he yell at enough Democrats to keep his job?

The embattled FBI director, under criticism from both sides for [tweeting through](#) the Kirk-shooter search last week [from a table at the upscale New York restaurant Rao's](#), testified before both the House and Senate this week. And we're not sure we've seen a hearing that has produced so many clips of a high-level government official—the supposedly neutral head of the FBI at that—yelling or casting insults at the lawmakers asking him questions.

Kash Patel told California Sen. Adam Schiff [that he was](#) "the biggest fraud to ever sit in the United States Senate," "a disgrace to this institution and an utter coward," and "a political buffoon, at best." [He told](#) New Jersey Sen. Cory Booker that "your falsehoods are an embarrassment to the division in this country." [He told](#) California Rep. Eric Swalwell that his "entire career in Congress" was "bullshit" and "a disgrace to the American people." This—especially the exchange with Schiff—is a tactic we've seen before from endangered Trump subordinates. When Defense Secretary nominee Pete Hegseth's confirmation was on the ropes, for example, he found a camera bank and broadcast himself, straight to an audience of one in Trump's living room, [chastising the assembled media](#). Making a show of screaming at Adam Schiff, a longtime enemy of Trump's, is Patel's version of that. It probably worked.

4.

Pam Bondi

Hey, now, that sounds like wussy left-coded language ...

Between Carr and Attorney General Pam Bondi, this week served as a reminder to top Trump administration officials with tremendous authority that you do *not* need to do interviews and podcasts all the time. In Bondi's case, the offending remarks came when she appeared earlier this week on Katie Miller's podcast. (All right, she probably *does* need to appear on Stephen Miller's wife's podcast when asked to do so, since Stephen Miller [runs the country](#).) In the episode, Bondi argued: "There's free speech, and then there's hate speech. And there is no place—especially now, especially after what happened to Charlie—in our society." Bondi, the most powerful prosecutor in

the country, added, “We will absolutely target you, go after you, if you are targeting anyone with hate speech.”

This didn’t go [over well on the right](#), and not just because Bondi was endorsing a violation of the First Amendment. The term *hate speech* is nails on a chalkboard to the right, all too reminiscent of cancel culture and perceived restraints from the left against *telling it like it is*. It’s also important, with both Bondi and Patel, to emphasize that they were already on thin ice with the right for having not yet released proof that Jeffrey Epstein was trafficking minors to every top Democrat in the country. And so Bondi [tried to clean up her comments](#), posting, “Hate speech that crosses the line into threats of violence is NOT protected by the First Amendment.” We don’t feel it’s our obligation to provide free advice to the attorney general on how to shore up her support on the right, but: probably best to retire the term *hate speech* altogether.

5.

TikTok

A mess all around.

The Trump administration and China are closing in on a TikTok deal. As a reminder, a 2024 law required the app’s China-based owner, ByteDance, to divest TikTok or face a ban in the United States. [According to reporting](#) on the outlines of the deal this week, a consortium of companies, including Oracle, Silver Lake, and Andreessen Horowitz, would take an 80 percent ownership stake in the spun-off app. Less clear are the particulars around control of TikTok’s proprietary algorithm, the secret sauce that’s core to its value.

The first thing that pops out to us here: Oracle is Larry Ellison, and Andreessen Horowitz is Marc Andreessen. [Both are Trump buddies](#), and the administration is rewarding them with a lucrative prize for their support. So there’s that. But this process has also made a joke of Congress. Several times, Trump issued “extensions” of an enforcement delay on the TikTok ban, something he has no legal authority to do. The law passed last year gave the president one short-term extension, *if* a deal were in the offing. Trump has done it four times. This seems like something that Congress, which overwhelmingly approved this legislation along bipartisan lines, ought to have taken legal action against. But both Republicans and Democrats are worried about getting on the wrong side of the tens of millions of TikTok users out there by actually *enforcing* a law they passed. The net result is another multibillion-dollar prize for the game-show president to dangle.

6.

Susan Monarez

An honest-to-goodness oversight hearing into weird Trump-administration stuff.

As the Surge wrote about separately [this week](#), something most unusual went down in the Senate on Wednesday: A Republican committee chairman convened a hearing to probe a scandal within the Trump administration. In this case, Louisiana's Bill Cassidy, who helms the Senate HELP Committee, brought in ex–Centers for Disease Control and Prevention Director Susan Monarez to [give her account](#) of how she was fired for not agreeing to rubber-stamp plans to water down vaccine recommendations from a stacked panel of vaccine skeptics.

But did this spotlight into a controversy within the administration change anything? Maybe! It's not an accident that Cassidy held the hearing the day before that panel was set to meet to make its childhood vaccination schedule recommendations to the CDC, and the hearing displayed vividly—if it weren't already obvious—that these recommendations *might* not entirely be on the level. One of the most expected changes from the panel was that it would no longer recommend the hepatitis B vaccine for newborns. Instead, the panel [tabled that vote](#) altogether. Oversight is good. Hmm, any other funny business out there worth looking into ...?

7.

Erik Siebert

A preview of coming attractions in authoritarianism.

One last scandal, then we release you to your Saturday-morning errands. [ABC News reported](#) Thursday evening that Trump was “expected” to fire the U.S. attorney for the Eastern District of Virginia, Erik Siebert, “after investigators were unable to find incriminating evidence of mortgage fraud against New York Attorney General Letitia James.” As of Surge press time, there's been no official announcement on whether Trump has gone through with the firing—and at least some in the administration [are recognizing](#) that this could be a hot mess. If Trump does proceed, though, we'd argue that it's not great for a president to fire a prosecutor who, due to lack of available evidence, opts not to file criminal charges against one of the president's political enemies. (Update: Siebert [resigned under pressure](#) late Friday night.) That's all! Now that you have read the Surge, you are free to stop following the news for the rest of the weekend.

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